

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-21

PKDC, LLC
Complainant,

v.

CMA CGM S.A
Respondent.

MOTION FOR FURTHER EXTENSION OF SCHEDULING DEADLINES

Pursuant to 46 C.F.R. §§ 502.69 and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”) respectfully moves for a further extension of scheduling deadlines to allow for the completion of ongoing discovery as a result of Complainant’s counsel’s current medical issue. As discussed below, the extension will also allow Respondent CMA CGM S.A. (“Respondent” or “CMA”) sufficient time to fully respond to outstanding discovery requests and to complete depositions after document discovery has been completed.

Respondent indicates that it does not oppose extending the discovery schedule nor the postponement of three of the tentatively scheduled depositions, but opposes the postponement of a fourth deposition. Notably, this extension will also aid Respondent in finalizing its discovery responses after objecting to the production nearly any information in response to discovery requests that were served back in October 2025 but not responded to until January 9, 2026. After a meet and confer, Respondent has promised to endeavor to produce most of the disputed information and documents by Friday, January 30, 2026. But because a deposition of

Respondent’s “main” witness had already been tentatively proposed for this Wednesday, January 28, 2026—and despite the fact that Complainant’s counsel is recovering from a serious, sudden illness—Respondent believes that this deposition must go forward, regardless of whether the discovery schedule is extended.

As discussed below, good cause exists for this motion. Respondent’s opposition appears to have little to do with whether good cause exists and much to do with exploiting an unfair advantage partly of its own making. The motion should be granted.

I. Background

Following entry of the original Scheduling Order in this matter, the parties have been actively engaged in discovery. However, due to the complexity of the matter and the volume of discovery necessary, the parties have sought several previous extensions. The last Amended Scheduling Order was entered on November 18, 2025, wherein the FMC partially granted the parties’ request for an extension of time and issued an Amended Scheduling Order that set the close of discovery on February 2, 2026.

In accordance with the most recent Amended Scheduling Order, the parties continued to complete discovery. To start, the parties exchanged written deposition notices, met and conferred on certain objections to deposition topics many of which have been resolved, and set tentative dates for depositions of witnesses at the end of January and beginning of February 2026. Additionally, in early January 2026, Respondent finally served written responses and objections to Complainant’s second interrogatories and requests for production, which had been served in October 2025. Respondent, however, largely objected to the production of any documents in response to these requests and refused to answer certain interrogatories. After meeting and conferring as promptly as possible,¹ Respondent relented and is endeavoring to produce most of

¹ The meet and confer process was briefly delayed at the request of Respondent’s counsel which Complainant’s counsel accommodated.

the documents and interrogatory responses that Complainant requested by the end of this week, or January 30, 2026.

On January 17, 2026, undersigned counsel became ill, ultimately being diagnosed with a sudden, serious illness that has necessitated multiple doctor visits, an emergency room visit, and prescription medication with side effects which, in and of themselves, make working extremely difficult. Despite best efforts, the illness has largely prevented counsel from working on this matter and will continue to do so for several days.

Undersigned counsel has done his best to keep Respondent's counsel informed. On the morning of January 20, 2026, Respondent's counsel was made aware that undersigned counsel was in the hospital. In response, Respondent's counsel proposed deposition dates for Respondent's witnesses the week of January 26, 2026. In particular, the deposition of Respondent's "main" witness, who would answer most of the deposition topics that Complainant requested, was proposed for January 28, 2026. Thereafter, on January 22, 2026, the parties met and conferred on deposition and discovery issues wherein undersigned counsel indicated that he was still very ill but would try his best to move forward on depositions, though his illness may necessitate a short extension.

Thereafter, on January 23, 2026, undersigned counsel's condition had not yet materially improved, and so Respondent's counsel was asked to consent to a modest extension of the discovery schedule—less than two weeks. This extension would permit undersigned counsel to recover and provide enough time for the parties to reschedule depositions in early February. On the morning of January 26, 2026, however, Respondent's counsel replied that although Respondent would not oppose an extension of the discovery schedule and a rescheduling of certain depositions, it would oppose the rescheduling of the "main" deposition scheduled to occur on January 28, 2026. The reason provided by Respondent's counsel was that Respondent had already flown an in-house

attorney to France to prepare and assist the witness and that the witness had a busy schedule.

II. Argument

Rule 102(a) of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), provides in relevant part: “Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause.” Complainant submits good cause exists in this instance.

a. Extension of Discovery and Briefing Deadlines

As discussed above, despite best efforts, undersigned counsel’s unexpected illness has prevented counsel from devoting sufficient time to this matter to prepare for and take any depositions, let alone the deposition of Respondent’s “main” witness. A medical issue typically constitutes good cause for an extension of time. *See, e.g., Verterra Ltd. v. D.B. Grp. Am. Ltd.*, 2019 WL 7566991 (F.M.C. Dec. 26, 2019) (noting that “good cause [was] established” in part due to “a medical procedure”); *YSN Imports Inc. v. Oberlander*, 2021 WL 1627720 (F.M.C. Apr. 20, 2021) (continuing “medical emergency in counsel’s family” established good cause for two extensions totaling approximately a month). Additionally, the extension of time requested—just 11 days—is “short,” and undersigned counsel has taken “reasonable steps by obtaining the assistance of co-counsel.” *YSN Imports Inc.*, 2021 WL 1627720. Nor does Respondent’s counsel technically oppose an extension of the discovery schedule. *Id.* Further, Undersigned counsel met and conferred again on the morning of January 26, 2026, and indicated that he would not be well enough to take the deposition on January 28, 2026, and indicated that he would work with Respondent to choose another mutually agreeable deposition date. Complainant had already agreed to conduct the deposition remotely to allow the witness to appear from wherever most convenient to the witness, and to begin the deposition as early as required to accommodate any time differences, so there is no prejudice. As such, good cause exists for the requested extension on the basis of undersigned

counsel's illness alone.

Separate and apart from undersigned counsel's illness, good cause for an 11-day extension of the remaining deadlines exists due to Respondent's inability to produce information in response to Complainant's months-old discovery requests in advance of depositions. Respondent has indicated that it endeavors to produce much of the requested information by January 30, 2026—just one business day before the current close of discovery, and days *after* Respondent's "main" witness was tentatively scheduled to be deposed. That does not leave sufficient time for Complainant to review this production of information, follow up on any deficiencies, or depose witnesses concerning this new information. An eleventh-hour production of important information in discovery is good cause itself for extending discovery and briefing deadlines, as well as for rescheduling depositions.

As noted, Respondent technically does not oppose Complainant's requested extension and indeed will benefit from the additional time to produce outstanding discovery. Respondent does, however, oppose rescheduling the tentatively scheduled deposition of its "main" witness on January 28, 2026.

Any opposition would be without merit. For one, it is unclear how this motion to extend deadlines in the scheduling order relates to the tentatively scheduled deposition. Should an extension be granted—and it should, for the reasons discussed above—the deposition can simply be rescheduled to a date and time that is convenient for Respondent. For another, the reason asserted for opposing the requested extension—the fact that Respondent's in-house attorney has already flown to France—does not vitiate the good cause that exists for the extension in the first place. Nor is it prejudicial to Respondent. Whatever small expense that Respondent incurred, despite being informed by January 20, 2026, that undersigned counsel was suffering from a serious illness at the time, can still be put to good use in preparing Respondent's witness for deposition. Moreover, for the reasons discussed above, continuing with a crucial deposition on January 28, 2026, prejudices

Complainant far more than it would prejudice Respondent.

In short, Respondent's refusal to produce a significant amount of information until the eleventh hour (and only *after* the proposed deposition of Respondent's most important witness), combined with Respondent's refusal to accommodate undersigned counsel's illness, smacks of gamesmanship. Good cause exists for the requested extension, and Respondent's opposition does not change that.

III. Proposed Amended Schedule

Given undersigned counsels medical issue, and that the parties are still working to complete the necessary discovery in this matter, Complainant respectfully requests an approximately 11-day extension of the current Amended Scheduling Order as set forth below:

Event	Current Amended Deadline	Proposed Extended Deadline
Close of discovery	February 2, 2026	February 13, 2026
Complainant's initial brief, proposed findings of fact, and appendix	March 9, 2026	March 20, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	April 8, 2026	April 20, 2026
Complainant's reply and responses to proposed findings of fact	April 16, 2026	April 27, 2026

WHEREFORE, the Complainant prays that this partially unopposed motion be granted and an Amended Scheduling Order extending all deadlines by approximately 11 days from the dates established in the prior Amended Scheduling Order be issued and it further ordered that all tentatively scheduled depositions be postponed to mutually agreeable dates.

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

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Dated: January 26, 2026